

**STATE OF CALIFORNIA
REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL COAST REGION
895 Aerovista Place, Suite 101
San Luis Obispo, California 93401**

**WASTE DISCHARGE REQUIREMENTS ORDER NO. R3-2002-0043
NPDES NO. CA0049224
Waste Discharge Identification No. 3 400107001
Modified March 25, 2005**

For

**CITY OF SAN LUIS OBISPO
WATER RECLAMATION FACILITY,
SAN LUIS OBISPO COUNTY,
And
INDIRECT DISCHARGERS
And
LOCAL SEWERING ENTITIES of
CALIFORNIA STATE POLYTECHNIC UNIVERSITY AND
SAN LUIS OBISPO COUNTY AIRPORT**

The California Regional Water Quality Control Board, Central Coast Region (hereafter Board) finds:

preventing overflows and may include restricting or prohibiting the volume, type, or concentration of wastes that might be added to the system.

SITE OWNER AND LOCATION

1. **Owner and Operator.** The City of San Luis Obispo (hereafter Discharger) owns and operates a wastewater collection, treatment and disposal system to provide sewerage service to the City of San Luis Obispo, California Polytechnic State University, and the San Luis Obispo County Airport.
2. **Sewering Entities.** The University and Airport retain ownership and direct responsibility for wastewater collection and transport systems up to the point of discharge into the wastewater treatment plant and/or interceptors owned and operated by the Discharger. It is incumbent upon these local sewerage entities to protect the environment to the greatest degree possible and ensure their local collection systems, as well as the receiving sewerage system, are protected and utilized properly. This responsibility includes

3. The Discharger's Water Reclamation Facility is located on property owned by the Discharger in San Luis Obispo County (T31S, R12E, Section 10, MD B&M) as shown on Attachment "A".

PURPOSE OF MODIFICATION

4. The Regional Board last issued National Pollutant Discharge Elimination System (NPDES) Permit No. CA0049224 on March 31, 2002 (Order No. R3-2002-0043). The NPDES Permit is being reopened as required by a reopener clause to include effluent limitations and a compliance schedule for selenium, cyanide, bromoform, dichlorobromomethane, and chlorodibromomethane.

FACILITY DESCRIPTION

5. **Discharge type and disposal.** Treated municipal wastewater is discharged to San Luis Obispo Creek (Creek) at 35°14'40" N. Latitude, 120°40'45" W. Longitude, as shown in Attachment "A". Land-based disposal options were considered during planning under the federal Clean Water Grants Program.
6. **Design and treatment capacity.** Treatment facilities include wet-weather flow equalization, screening, grinding, aerated grit removal, primary settling, biofiltration, secondary settling, nitrification using activated sludge, final settling, cooling using evaporative cooling towers, dual media filtration, and chlorination/dechlorination. Solids are thickened in a dissolved air floatation thickener, stabilized in anaerobic digesters and dewatered either by belt presses or drying beds. Stabilized solids are applied to nonfood agricultural crops. The treatment plant's design capacity (Average Dry Weather Flow) is 5.2 million gallons per day (mgd).
7. **Major Discharge.** The Environmental Protection Agency and this Regional Board classify this discharge as a major discharge.

RELEVANT REGULATIONS

8. **Basin Plan.** The *Water Quality Control Plan, Central Coastal Basin*, (Basin Plan) was adopted by the Board on November 17, 1989, and approved by the State Board on August 16, 1990. The Board approved amendments to the Basin Plan on February 11, 1994 and September 8, 1994. The Basin Plan incorporates State Board plans and policies by reference and contains a strategy for protecting beneficial uses of State waters.
9. **Beneficial Uses.** Existing and anticipated beneficial uses of San Luis Obispo Creek and Estuary downstream of the discharge include:
- Domestic and municipal supply,
 - Agricultural supply,
 - Groundwater recharge,

- Non-contact water recreation,
- Water-contact recreation,
- Wildlife habitat,
- Cold freshwater habitat,
- Warm freshwater habitat,
- Fish migration,
- Fish spawning,
- Estuarine habitat,
- Freshwater replenishment,
- Commercial and sports fishing, and
- Aquaculture,
- Preservation of Biological Habitats of Special Significance,
- Rare, threatened or endangered species; and
- Shellfish Harvesting.

Existing and potential beneficial uses of ground water downgradient of the discharge include:

- Domestic and municipal supply,
- Agricultural supply, and
- Industrial supply.

10. **Basin Plan Salt Objectives.** The Basin Plan establishes water quality objectives for salts in San Luis Obispo Creek. Monitoring data over the past year demonstrate that the discharge has caused no objective to be exceeded. However, salt discharged to the Creek threatens to cause its waters and underlying groundwater to exceed Basin Plan water quality objectives. Therefore, Section G requires the Discharger to develop a Salts Management Program to ensure effluent salts do not cause the Creek's waters or the groundwater to exceed the objectives.
11. **California Toxics Rule.** On May 18, 2000, the United States Environmental Protection Agency promulgated in the Federal Register *Water Quality Standards; Establishment of Numeric Criteria for Priority Toxic Pollutants for the State of California; Rule (40 CFR Part 131)* (California Toxics Rule or CTR). The California Toxics Rule establishes ambient water quality criteria for priority toxic pollutants in the State of California.

12. **Implementation Policy.** On March 2, 2000, the State Water Resources Control Board adopted the *Policy for Implementation of Toxics Standards for Inland Surface Waters, Enclosed Bays, and Estuaries of California* (Implementation Policy). The Implementation Policy details how CTR water quality criteria will be implemented through NPDES Permits, waste discharge requirements, and other regulatory approaches.

13. **Reasonable Potential Analysis.** 40 CFR Part 122.44(d)(1)(i) requires effluent limitations for any pollutant with a reasonable potential to exceed a water quality objective. The Discharger completed a Reasonable Potential Analysis (RPA) to statistically determine which CTR and California Code of Regulations (CCR) Title 22 pollutants have reasonable potential to exceed their respective water quality objectives and require effluent limitations. The RPA was performed in accordance with the Implementation Policy, using conservative assumptions and a data set consisting of 7 to 9 effluent data points for each of the CTR and CCR Title 22 pollutants. The RPA found that selenium, cyanide, bromoform, chlorodibromomethane, and dichlorobromomethane exhibited reasonable potential and require effluent limitations. Selenium has reasonable potential due to one elevated background concentration. One of seven samples exceeded the lowest cyanide criteria (5.2 µg/L). One of nine effluent samples exceeded the lowest bromoform criteria (5 µg/L). All nine effluent samples exceeded the lowest chlorodibromomethane and dichlorobromomethane criterion (0.4 µg/L and 0.6 µg/L, respectively).

14. **Compliance Schedule.** The Implementation Policy provides that where it is infeasible for a discharger to achieve immediate compliance with a CTR criterion, or with an effluent limitation based on a CTR criterion, the Regional Board may establish a compliance schedule in an NPDES permit. When a compliance schedule exceeds one year from the date of permit issuance or modification, interim limitations shall be included in the NPDES permit. If the final compliance date

extends beyond the permit term, the final compliance date and supporting explanation must be included in the permit findings. The schedule of compliance must be as short as practicable, but in no case may exceed five years from the date of permit modification, or 10 years from the effective date of the Implementation Policy (which is May 8, 2000). If the compliance schedule exceeds the permit term, the final effluent limitations must be included in the permit findings, with a statement that it is the intent of the Regional Board to incorporate the final effluent limitations in a subsequent permit reissuance.

15. **Chlorodibromomethane, and Dichlorobromomethane.** The Regional Board finds that immediate compliance with CTR criteria for chlorodibromomethane and dichlorobromomethane is not feasible. Significant changes to the treatment process that likely will require multiple years to implement are necessary to achieve compliance. The Discharger has made diligent efforts to quantify pollutant levels and sources, and the compliance schedule is as short as practicable. In accordance with the Implementation Policy, the following compliance schedule is included in this Permit in Section H:

Compliance Schedule for Chlorodibromomethane and Dichlorobromomethane Final Effluent Limitations	
Interim Requirement	Completion Date
1. Send request for environmental and consulting engineering proposals.	November 1, 2005
2. Initiate design of facility improvements.	May 1, 2006
3. Complete design of facility improvements.	March 1, 2007
4. Complete CEQA process.	August 1, 2007
5. Obtain any necessary permits.	November 1, 2007

6. Issue Notice to Proceed to contractor.	December 1, 2007
7. Submit construction progress reports.	Quarterly (w/ self monitoring reports)
8. Complete construction and commence debugging and startup.	December 1, 2009
9. Comply with Final Effluent Limitations.	March 1, 2010

Since this Permit's term ends May 31, 2007, Interim Requirement Nos. 4 through 9 above are not included as enforceable limitations in this Permit. The Regional Board intends to incorporate Interim Requirements 4 through 9 into this Permit as enforceable requirements when this Permit is reissued in 2007.

16. **Interim Effluent Limitations.** In accordance with the Implementation Policy, this Permit includes interim effluent limitations for chlorodibromomethane and dichlorobromomethane that are based on the highest observed concentrations in treatment plant effluent during the RPA period (December 2002 through June 2004). The interim effluent limitations become effective on the date this Permit modification is approved by the Regional Board and no longer apply when final effluent limitations become effective.

17. **Final Effluent Limitations.** The Regional Board intends to incorporate the following final effluent limitations into this Permit as enforceable limitations when this Permit is reissued in 2007. These final effluent limitations are not incorporated into this Permit at this time because the schedule to comply with these limitations exceeds the Permit term. The reissued permit will provide that the final effluent limitations will become effective and fully enforceable on March 1, 2010. In the meantime, the Discharger must comply with the interim effluent limitations and compliance schedule described in the previous findings.

Constituent	Monthly Average (µg/L)	Daily Maximum (µg/L)
Chlorodibromomethane	0.4	0.8
Dichlorobromomethane	0.6	1.1

These limitations are based on CTR's water and organism consumption human health criteria. Each limitation assumes no dilution by the receiving water.

18. **Selenium, Bromoform, Cyanide.** The Discharger should be able to achieve immediate compliance with CTR criteria for selenium, bromoform, and cyanide; therefore this Permit includes final effluent limitations for these constituents that are effective immediately. The selenium and cyanide effluent limitations are based on CTR's fresh water chronic toxicity criteria. The bromoform limitations are based on CTR's water and organism consumption human health criteria. All limitations were developed assuming no dilution by the receiving water.
19. **California Water Code Section 13263.6(a).** In accordance with California Water Code Section 13263.6 (a), the Regional Board must prescribe effluent limitations as part of the waste discharge requirements of a Publicly Owned Treatment Works (POTW) for all substances for which the most recent toxic chemical release data (reported to the state emergency response commission pursuant to Section 313 of the Emergency Planning and Community Right to Know Act of 1986 (42 U.S.C. Sec. 11023)) indicate as discharged into the POTW, for which the state board or the regional board has established numeric water quality objectives, and has determined that the discharge is or may be discharged at a level which will cause, have the reasonable potential to cause, or contribute to, an excursion above any numeric water quality objective. Evaluation of wastewater constituents in the discharge determined that no need exists to include effluent limitations in accordance with California Water Code Section 13263.6(a).

MONITORING AND REPORTING PROGRAM

20. Monitoring and reporting is necessary for the Board to ascertain compliance with this permit. This permit requires the Discharger to provide discharge monitoring reports specified in Monitoring and Reporting Program RB3-2002-0043. Discharger is required to provide this information because it operates the collection system and wastewater treatment plant regulated by this permit.

CALIFORNIA ENVIRONMENTAL QUALITY ACT

21. Modification of an NPDES permit is exempt from the provisions of the California Environmental Quality Act (Public Resources Code, Section 21100, et seq.) in accordance with Section 13389 of the California Water Code.

GENERAL FINDINGS

22. **Anti-backsliding.** 40 CFR Section 122.44(I) requires effluent limitations for modified NPDES permits be at least as stringent as the previous permit, unless certain grounds for "backsliding" apply. All final effluent limitations in the modified Order are at least as stringent as the previous permit and comply with Anti-Backsliding provisions. The prior Order included final effluent limitations for chlorodibromomethane and dichlorobromomethane that never took effect and therefore are not subject to Anti-Backsliding. Anti-Backsliding also does not apply to interim limitations.
23. **Anti-Degradation.** The discharge authorized in this permit is expected to maintain receiving water quality and associated beneficial uses of the receiving waters. Discharge in accordance with limitations and specifications of this permit is not expected to degrade water quality. Accordingly, this permit is consistent with the requirements of State Water Resources Control Board Resolution No. 68-16 (commonly called the anti-degradation policy).
24. **Mandatory Penalties.** Section 13385(h) et seq. of the California Water Code requires the Regional Board to impose mandatory penalties for certain effluent limit violations. Section 13385(h) et seq. applies to effluent discharged to San Luis Obispo Creek from this Discharger.
25. A permit and the privilege to discharge waste into waters of the State are conditional upon the discharge complying with provisions of Division 7 of the California Water Code and of the Clean Water Act (as amended or as supplemented by implementing guidelines and regulations) and with any more stringent effluent limitations necessary to implement water quality control plans, to protect beneficial uses, and to prevent nuisance. This Order shall serve as a NPDES Permit pursuant to Section 402 of the Clean Water Act. Compliance with this Order should assure conditions are met and mitigate any potential changes in water quality due to the project.
26. This permit requires California Polytechnic State University and San Luis Obispo County Airport to comply with specified monitoring and reporting requirements in accordance with Water Code Sections 13267 and 13383. These entities are required to provide this information because they operate collection systems that discharge wastewater for treatment and discharge by the City of San Luis Obispo. Required monitoring and reporting is necessary for the Board to ascertain their compliance with this permit. Evidence supporting the need for the monitoring and reporting can be found in the applicable Board files.
27. Any person affected by this action of the Regional Board may petition the State Water Resources Control Board (State Board) to review the action in accordance with section 13320 of the California Water Code and Title 23, California code of Regulation, Section 2050. The State Board must receive the petition within 30 of the date of this order. Copies of the law and regulations applicable to filing petitions will be provided upon request.

28. **Public Notice.** On December 20, 2004, the Regional Board notified the Discharger and interested agencies and persons of its intent to modified waste discharge requirements for the discharge and has provided them with a copy of the proposed Order and an opportunity to submit written views and comments, and scheduled a public hearing.

29. **Public Hearing.** In a public hearing on March 25, 2005, the Board heard and considered all comments pertaining to the discharge and found this Order consistent with the above findings.

IT IS HEREBY ORDERED, pursuant to authority in Sections 13263 and 13377 of the California Water Code, that the City of San Luis Obispo, its agents, successors, and assigns, may discharge waste from the San Luis Obispo Water Reclamation Facility providing compliance is maintained with the following:

All technical and monitoring reports submitted pursuant to this Order are required pursuant to Section 13267 and 13383 of the California Water Code. Failure to submit reports in accordance with schedules established by this Order, attachments to this Order, or failure to submit a report of sufficient technical quality to be acceptable to the Executive Officer, may subject the discharger to enforcement action pursuant to Section 13268 and 13385 of the California Water Code. The Regional Board will base all enforcement actions on the date of Order adoption.

(Note: General permit conditions, definitions and the method of determining compliance are contained in the attached "Standard Provisions and Reporting Requirements for National Pollutant Discharge Elimination System Permits," dated January, 1985. Applicable paragraphs are referenced in paragraph H.3 and H.17. of this Order.)

Throughout this Order, the following footnotes provide the sources of the waste discharge requirements:

A = California Toxics Rule

B = Basin Plan

A. DISCHARGE PROHIBITIONS

1. Discharge of treated wastewater at a location other than 35°14'40" N. Latitude, 120°40'45" W. Longitude, as shown on Attachment "A," is prohibited, unless permitted by other waste discharge requirements or NPDES permit.
2. Discharge to San Luis Obispo Creek of wastewaters containing bentazon, molinate, or thiobencarb is prohibited.^B

B. INTERIM EFFLUENT LIMITATIONS

Effluent shall not exceed the following interim effluent limitations. These limitations are effective immediately and are no longer effective when the Final Effluent Limitations described in Finding No. 17 become effective.

Constituent	Daily Maximum (µg/L)
Chlorodibromomethane	42
Dichlorobromomethane	27

C. EFFLUENT LIMITATIONS

1. "Removal efficiencies" for suspended solids and biochemical oxygen demand (BOD) shall not be less than 85%. In addition, effluent shall not exceed the following limits:

Constituent	Units	Monthly (30-Day) Average	Weekly (7-Day) Average	Daily Maximum
BOD, 5-day	mg/L	10	30	50
	lbs/day	A ¹	B ²	C ³
Suspended Solids	mg/L	10	30	75
	lbs/day	A ²	B ³	D ⁴

2. Effluent shall not exceed the following limits:^B

Constituent	Units	Monthly (30-day) Average	Weekly (7-day) Average	Daily Maximum
Grease and Oil	mg/L	5	--	10
	lbs/day	E ⁵	--	F ⁶
Settleable Solids	mL/L	0.1	--	--

3. **Basin Plan Effluent Limitations** – Effluent shall not exceed the following limits:^B

Constituent	Maximum Concentration, mg/L
Aluminum	1.
Barium	1.
Fluoride	2.
Volatile Organic Chemicals (VOCs)	
cis-1,2-Dichloroethylene	0.006
Methyl-tert-butyl ether	0.013
Styrene	0.1

¹ Determined by multiplying 10 mg/L times the measured flowrate discharged to San Luis Obispo Creek.

² Determined by multiplying 30 mg/L times the measured flowrate discharged to San Luis Obispo Creek.

³ Determined by multiplying 50 mg/L times the measured flowrate discharged to San Luis Obispo Creek.

⁴ Determined by multiplying 75 mg/L times the measured flowrate discharged to San Luis Obispo Creek.

⁵ Determined by multiplying 5 mg/L times the average monthly measured flowrate discharged to San Luis Obispo Creek.

⁶ Determined by multiplying 10 mg/L times the monthly average daily maximum measured flowrate discharged to San Luis Obispo Creek.

Constituent	Maximum Concentration, mg/L
Trichlorofluoromethane	0.15
1,1,2-Trichloro-1,2,2-Trifluoroethane	1.2
Xylenes ⁷	1.750
Non-Volatile Synthetic Organic Chemicals (SOCs)	
Alachlor	0.002
Atrazine	0.003
Bentazon	0.018
Carbofuran	0.018
2,4-D	0.07
Dalapon	0.2
Dibromochloropropane (DBCP)	0.0002
Di(2-ethylhexyl)adipate	0.4
Di(2-ethylhexyl) phthalate	0.004
Dinoseb	0.007
Diquat	0.02
Endothall	0.1
Ethylene Dibromide (EDB)	0.00005
Glyphosate	0.7
Methoxychlor	0.04
Molinate	0.02
Oxamyl	0.2
Picloram	0.5
Simazine	0.004
Thiobencarb	0.07
2,4,5-TP (Silvex)	0.05

4. **California Toxics Rule Limits** – Effluent shall not exceed the following limits:^A

Constituent	Monthly (30-day) Average (µg/L) ⁸	Daily Maximum (µg/L)
Selenium	4.1	8.2
Bromoform	4.3	8.6
Cyanide	4.3	8.6

⁷ MCL is for either a single isomer or the sum of the isomers.

⁸ “30-day average” is the arithmetic mean of daily concentrations over the specified 30-day period. If monitoring results appear to violate 30-day average effluent limitations, but compliance cannot be determined because sampling is too infrequent, sampling frequency shall be increased to validate compliance. To evaluate compliance with a 30-day average, at least four (4) samples must be collected within a 30-day period.

5. Effluent shall comply with the following limitations and specifications:

- a. Effluent daily dry weather flow shall not exceed a monthly average of 5.2 MGD.
- b. The discharge shall not have a dissolved oxygen concentration less than 4.0 mg/L or so low that it adversely affects beneficial uses.^B
- c. The discharge shall not have a pH less than 6.5, or greater than 8.3 or the pH of the receiving water, or be at a level that adversely affects beneficial uses.^B
- d. The discharge shall not contain substances in concentrations which are toxic to, or which produce detrimental physiological responses in human, plant, or animal (particularly fish or aquatic) life.^B
- e. The median number of fecal coliform organisms in the effluent shall not exceed 2.2 MPN/100 milliliters (mL) of wastewater or the median number of total coliform organisms in effluent shall not exceed 23 MPN/100 milliliters (mL) of wastewater. Coliform numbers shall be determined by the results of bacteriological analyses for the last 7 days on which samples were taken. The maximum number of total coliform organisms in any sample shall not exceed 240 MPN/100mL.
- f. Compliance determinations for total chlorine residual shall be based on 99% compliance. To determine 99% compliance with effluent limitations for total chlorine residual, the following conditions shall be satisfied:
 - i. The total time during which the total chlorine residual values are above 0.01 mg/L (instantaneous maximum value) shall not exceed 7 hours and 26 minutes in any calendar month.
 - ii. No individual excursion from 0.01 mg/L shall exceed 30 minutes; and

- iii. No individual excursion shall exceed 2 mg/L.

If grab sampling is used instead of continuous analysis:

- i. The total number of excursions above 0.1 mg/L shall be no more than one (1) individual excursion in any calendar month.
- ii. No individual excursion from 0.1 mg/L shall exceed 30 minutes, and must include results of no fewer than 2 grab samples.
- iii. No individual excursion shall exceed 2.0 mg/L.

D. RECEIVING WATER LIMITATIONS

Many factors, some unrelated to the discharge, contribute to receiving water quality. This Order considers these factors and is designed to minimize receiving water quality degradation by the discharge.

1. The discharge shall not cause^B:

- a. pH to fall below 7.0 or exceed 8.3, or to change by more than 0.5 units.
- b. Temperature to increase more than 5° F above receiving water temperature. If, due to the Creek's low temperature as determined by early-morning monitoring, the discharge causes the Creek's temperature increase to exceed the limit, the Discharger must ensure the discharge shall not cause the receiving water to exceed 72.5° F (22.5° C). The Discharger shall monitor the Creek again four hours after discovering the exceedance and shall report both results to the Executive Officer in the monthly self-monitoring report.
- c. Turbidity to exceed the following, when the discharge adds to the Creek's natural surface flow:

Natural Turbidity ⁹ (NT), NTU	Maximum Increase
<50	20% or not more than 5 NTU
50<NT<100	10 NTU
>100	10%

- d. Turbidity to exceed 5 NTU when the Creek contains no natural flow.
- e. Dissolved oxygen concentrations to be depressed below 5.0 mg/L from May through September or 7.0 mg/L from October through April.
- f. Coloration to cause nuisance or to adversely affect beneficial uses. Coloration attributable to materials of waste origin shall not be greater than 15 units or 10 percent above natural background color, whichever is greater.
- g. Taste and odor producing substances in concentrations that impart undesirable tastes or odors to fish flesh or other edible products of aquatic origin, that cause nuisance, or that adversely affect beneficial uses.
- h. Floating material, including solids, liquids, foams, and scum in concentrations that cause nuisance or adversely affect beneficial uses.
- i. Suspended material in concentrations that cause nuisance or adversely affect beneficial uses.
- j. Settleable material in concentrations that result in the deposition of material that causes nuisance or adversely affects beneficial uses.
- k. Oils, greases, waxes or other similar materials in concentrations that result in a visible film or coating on the water surface or on objects in the water, that cause nuisance or otherwise adversely affect beneficial uses.

⁹ Natural Turbidity shall be determined from receiving water samples taken upstream of the discharge point.

- l. Biostimulatory substances in concentrations that promote aquatic growths to the extent that such growths cause nuisance or adversely affect beneficial uses.
- m. The discharge shall not cause the following limits to be exceeded:

Constituent	Annual running mean ¹⁰ , mg/L
Total Dissolved Solids ^B	850
Sodium ^B	200
Chloride ^B	200
Un-ionized Ammonia (as N)	0.025

E. PRETREATMENT SPECIFICATIONS

1. The discharger shall be responsible for the performance of all pretreatment requirements contained in 40 CFR 403 and shall be subject to enforcement actions, penalties, fines and other remedies by the U.S. Environmental Protection Agency (EPA), or other appropriate parties, as provided in the Clean Water Act, as amended (33 USC 1351 et seq.) (Hereafter "Act"). The Discharger shall implement and enforce its Approved POTW Pretreatment Program. The Discharger's Approved POTW Pretreatment Program is hereby made an enforceable condition of this permit. EPA or the Board may initiate enforcement action against an industrial user for noncompliance with applicable standards and requirements as provided in the Act.
2. The Discharger shall enforce the requirements promulgated under Sections 307(b), 307(c), 307(d) and 402(b) of the Act. The Discharger shall cause industrial users subject to Federal Categorical Standards to achieve compliance no later than the date specified in those requirements or, in the case of a new industrial user, upon commencement of the discharge.

¹⁰ Compliance shall be measured by comparison to an annual running mean of the past four quarterly sampling events.

3. The Discharger shall perform the pretreatment functions as required in 40 CFR 403, including, but not limited to:
 - a. Implement the necessary legal authorities as provided in 40 CFR 403.8(f)(1);
 - b. Enforce the pretreatment requirements under 40 CFR 403.5 and 403.6;
 - c. Implement the programmatic functions as provided in 40 CFR 403.8(f)(2); and,
 - d. Provide the requisite funding and personnel to implement the pretreatment program as provided in 40 CFR 403.8(f)(3).

F. COLLECTION SYSTEM MAINTENANCE AND RENOVATION PROGRAM

1. Discharger shall continue to implement a reasonable Collection System Maintenance and Renovation Program (Program). The Program shall be annually reviewed and updated as necessary each September 1st.
2. The Program shall be developed in accordance with sound engineering practices and shall include the following:
 - a. Identification of sources of infiltration and inflow (I/I) capable of causing overflow from the collection system, exceeding pump station capacity, or contributing to exceedances of treatment plant hydraulic capacity; and
 - b. Development of reasonable measures to reduce I/I through collection system renovation, beginning with the greatest sources of I/I and ongoing maintenance.
3. The Program shall include a description of the collection system, and ongoing maintenance and renovation measures. The Program shall include, but not necessarily be limited to, the following:
 - a. Maps showing the collection system, manholes, pump stations, and storm drains;

- b. Narrative descriptions of the following:

- i. *Line flushing and cleaning.* Line flushing and cleaning equipment, proposed cleaning schedule, the time in years necessary to clean the entire system, and assigned staff. Describe procedures to regulate area plumbers and construction sites to minimize the introduction of incompatible wastes, such as root balls and construction debris, into the collection system.
- ii. *Visual inspection.* Ongoing procedures to visually inspect the system and the time in years necessary to visually inspect the entire system.
- iii. *Pump station maintenance.* Maintenance schedule, capacity, historical and projected maximum flow to the station, operational problems and overflows over the prior three years.
- iv. *Alternate power.* Means of providing alternate power supply to pump stations if normal supplies fail.

4. Discharger shall report the Program in its annual report.

G. SALTS MANAGEMENT PROGRAM

Discharger shall implement a salts management program dedicated to minimizing the discharge of salts to San Luis Obispo Creek. Salt reduction measures should address all discharges of salt to the wastewater collection system, including residential, commercial, and industrial sources. The program shall include an annual evaluation of the salts reduction measures. The annual evaluation, at minimum, shall include:

- a. For the prior year, monthly salt concentration for the discharge and the Creek both upstream and downstream of the discharge point, and mass discharge data, presented in tables and graphically;
- b. Evaluation of the program's effectiveness from its inception to the reporting date;

- c. Evaluation of the effects of the discharged salts on the water quality in the Creek and the underlying groundwater; and
- d. Recommendations for future salt reduction measures and time schedules for their implementation.

The annual evaluation shall be included with the annual report.

H. COMPLIANCE SCHEDULE

The Discharger shall adhere to the following schedule to achieve compliance with final effluent limitations set forth in the findings of this Order. The Discharger shall complete each interim requirement as fast as practicable and attempt to shorten this schedule where possible.

Compliance Schedule for Chlorodibromomethane and Dichlorobromomethane Final Effluent Limitations	
Interim Requirement	Completion Date
1. Send request for environmental and consulting engineering proposals.	November 1, 2005
2. Initiate design of facility improvements.	May 1, 2006
3. Complete design of facility improvements.	March 1, 2007
See Finding No. 15 for Interim Requirements 4 through 9, which will be incorporated into this Permit as enforceable requirements when this Permit is reissued in 2007.	

The Discharger shall report to the Executive Officer in writing of its compliance or non-compliance with each interim requirement no later than fourteen days following each completion date. Each notification shall include an approximate completion date for the next interim requirement, and an explanation as to why that completion date is as fast as practicable.

I. PROVISIONS

1. Discharger shall submit a Trihalomethanes Reduction Evaluation by **November 1, 2005**. The Evaluation shall quantify reductions in

trihalomethanes as the result of the following changes:

- Elimination or replacement of chlorination prior to filtration and cooling;
- Elimination or replacement of chlorination of filter backwash, and
- Addition of air stripping to increase volatilization.

If these changes are not capable of achieving compliance with the Final Effluent Limitations described in Finding No. 17, the Evaluation shall quantify, based on conservative assumptions of effluent-dominated Creek flow, the distance downstream of discharge point at which the Creek will achieve compliance with California Toxics Rule criteria.

Discharger shall implement any changes, or combination of changes, that the Discharger determines will be effective in reducing trihalomethanes, unless the Discharger demonstrates to the Executive Officer's satisfaction that the change or changes are infeasible (as defined in the Implementation Policy). The Discharger may instead implement alternatives to any feasible changes identified by the Trihalomethanes Reduction Evaluation, if the Discharger demonstrates to the Executive Officer's satisfaction that the alternatives will have comparable efficacy in reducing trihalomethanes.

2. Discharger shall comply with "Monitoring and Reporting Program No. RB3-2002-0043," as ordered by the Executive Officer.
3. Discharger shall comply with all items of the attached "Standard Provisions and Reporting Requirements for National Pollutant Discharge Elimination System Permits," dated January 1985, except paragraph (a) of Item E.1. shall apply only if the bypass is for essential maintenance to assure efficient operation.
4. The EO may reopen the Permit if the Board adopts a TMDL before the Permit expires and the Board finds it necessary to revise the Permit's waste discharge requirements.

5. After the State Board adopts its Order regarding the City of Vacaville's Waste Discharge Requirements Order No. 5-01-044 (SWRCB/OCC File A-1375) or after the resolution of subsequent appeals or lawsuits, the Board may reopen this Permit to modify its requirements.
6. When toxicity monitoring finds acute or chronic toxicity in the effluent, the Discharger shall resample and submit the results within 10 days after the test to the EO. The EO will determine whether to initiate enforcement action, whether to require Discharger to implement toxicity reduction evaluation (TRE) requirements, or to implement other measures approved by the EO. Discharger shall implement a TRE as outlined below: EPA's Toxicity Reduction Evaluation Procedures, Phases 1,2, and 3 (EPA Document Nos. EPA 600/3-88/034, 600/3-88/035 and 600/3-88/036, respectively) and TRE Protocol for Municipal Wastewater Treatment Plants (EPA 600/2-88/062) shall be the basis for this plan.

Toxicity Reduction Evaluation

Upon identifying noncompliance, in accordance with the reporting requirement noted above, the Discharger shall initiate a TRE according to the following schedule:

a. Take all reasonable measures necessary to immediately reduce toxicity, where source is known	Within 24 hours of identification of noncompliance
b. Submit to the EO a TRE study plan describing the toxicity reduction procedures to be employed	Within 60 days of identification of noncompliance
c. Initiate the TRE	Within 7 days of notification by the EO
d. Conduct the TRE following the procedures in the plan	One year period or as specified in the plan
e. Submit the results of the TRE, including summary of findings, required corrective action, and all results and data.	Within 60 days of completion of the TRE
f. Implement corrective actions to meet permit limits and conditions	To be determined by the EO
g. Return to regular monitoring after implementing corrective measures and approval by the EO.	To be determined by the EO

5. This Order expires on **May 31, 2007**, and the Discharger must file a Report of Waste Discharge in accordance with Title 23, Chapter 3, Subchapter 9, of the California Code of Regulations, not later than **November 31, 2006**, if it wishes to continue the discharge.

IT IS FURTHER ORDERED, that the California Polytechnic State University and the San Luis Obispo County Airport shall:

1. Comply with the attached "Standard Provisions and Reporting Requirements," including: A, General Permit Conditions, paragraphs numbered 1-4, 6-11, 14-18, 20 and 21; C, General Reporting Requirements, paragraph numbers 4, 5, 13, 14, 15, and 17; D, General Pretreatment Provisions; F, Enforcement, paragraph numbers 3, 4, and 5; and G, Definitions.
2. Cooperate with the Discharger in implementing its pretreatment program.

I, **Roger W. Briggs**, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Coast Region, on May 31, 2002, and modified on March 25, 2005.


Executive Officer

**STATE OF CALIFORNIA
CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL COAST REGION
895 Aerovista Place, Suite 101
San Luis Obispo, CA 93401**

**MONITORING AND REPORTING PROGRAM NO. R3-2002-0043
NPDES PERMIT NO. CA0049224
Modified on March 25, 2005**

FOR

**CITY OF SAN LUIS OBISPO
WATER RECLAMATION FACILITY
SAN LUIS OBISPO COUNTY**

INFLUENT MONITORING

Samples of the influent to the treatment plant shall be collected at the plant headworks and analyzed for the following constituents:

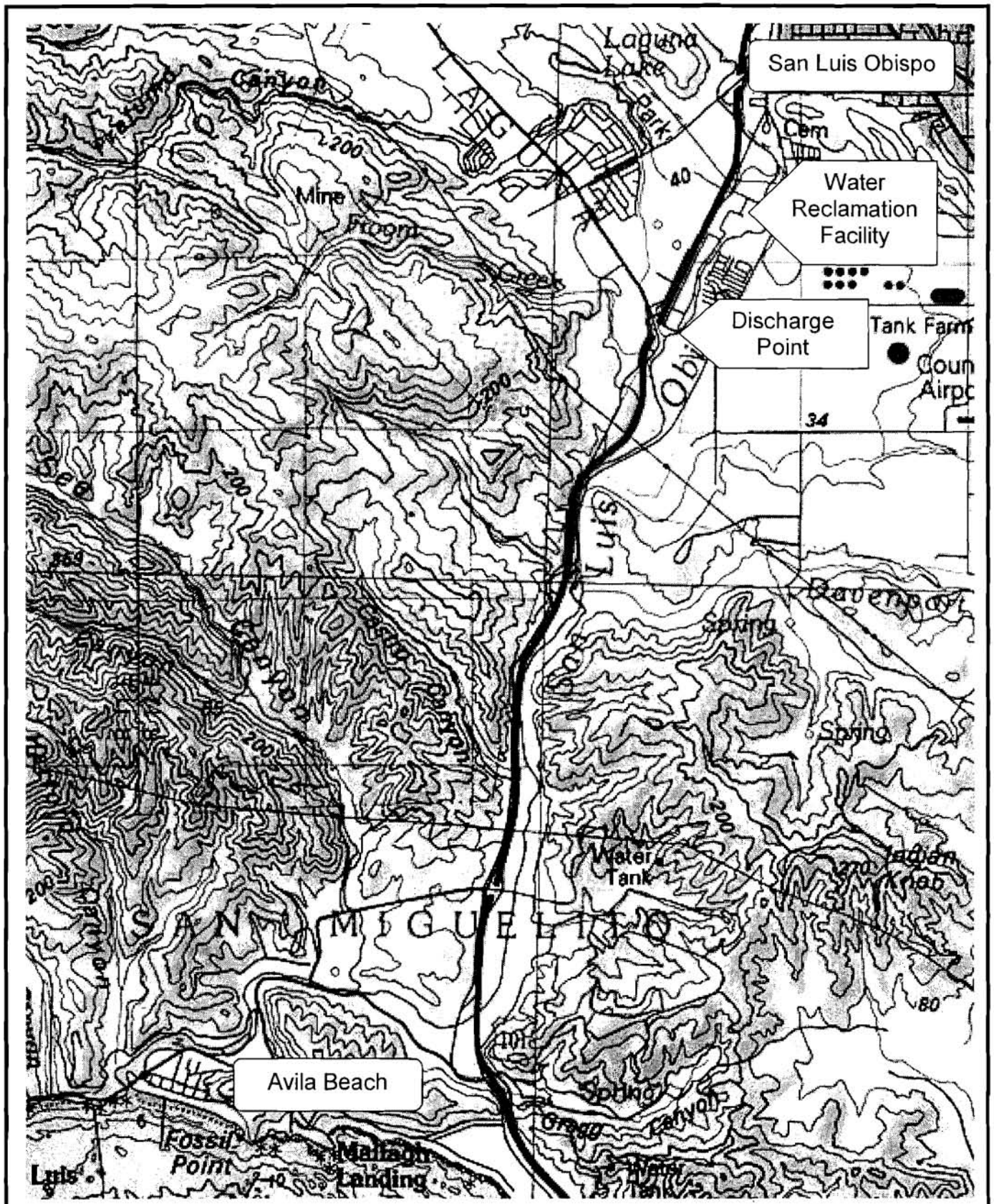
Constituent	Units	Type of Sample	Minimum Sampling Frequency
BOD, 5-day	mg/L	24-hr. composite	Monthly
Suspended Solids	mg/L	24-hr. composite	Monthly

EFFLUENT MONITORING

When discharging at Discharge Point 001, composite samples shall be taken at the effluent structure after the last treatment process, and grab samples shall be taken at Discharge Point 001. Representative samples of the effluent discharged to San Luis Obispo Creek shall be collected and analyzed for the following constituents:

Constituent	Units	Sample Type	Sampling Frequency
Daily Flow	MG	Metered	Daily
Instantaneous Maximum Flow Rate	MGD	Metered	Daily
Maximum Daily Flow	MGD	Calculated	Monthly
Mean Daily Flow	MGD	Calculated	Monthly
BOD Mass Emissions Rate	Lbs/day	Calculated	Monthly
pH	units	Grab	Daily ¹
Chlorine Residual	mg/L	Continuous ¹ or Grab	Grab samples shall be taken twice per day, and within 30 minutes of any excursion above 0.1 mg/L
Total Chlorine	lbs/day	Instantaneous	Daily

¹ Report minimum and maximum pH and maximum chlorine residual. Also report if there is natural flow in San Luis Obispo Creek.



Attachment A
Water Reclamation Facility and Discharge Area
City of San Luis Obispo, California

Constituent	Units	Sample Type	Sampling Frequency
Temperature	°C	Grab	5 days per week
Fecal Coliform Organisms	MPN/100 mL	Grab	5 days per week
Total Coliform Organisms	MPN/100 mL	Grab	5 days per week
Settleable Solids	mL /L	24-hr. Composite	5 days per week
Suspended Solids	mg/L	24-hr. Composite	Weekly
Turbidity	NTU	24-hr. Composite	Every ten days
BOD, 5-Day	mg/L	Grab	Monthly
Chronic Toxicity ²	TU _c	Grab	Annually (in October)
Acute Toxicity ³	TU _a	Grab	Annually (in October)
Dissolved Oxygen	mg/L	Grab	Monthly
Color	mg/L	Grab	Monthly
Grease and Oil	mg/L	Grab	Monthly
Total Kjeldahl Nitrogen (as N)	mg/L	Grab	Monthly
Ammonia (as N)	mg/L	Grab	Weekly
Nitrite (as N)	mg/L	Grab	Monthly
Nitrate (as N)	mg/L	Grab	Monthly
Dissolved Orthophosphate (as P)	mg/L	Grab	Monthly
Total Phosphate (as P)	mg/L	Grab	Monthly
Total Dissolved Solids	mg/L	Grab	Quarterly
Sodium	mg/L	Grab	Quarterly
Chloride	mg/L	Grab	Quarterly
Selenium	µg/L	24-hr. Composite	Monthly
Cyanide	µg/L	24-hr. Composite	Monthly

² Chronic toxicity tests shall be conducted in accordance with *Short-term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to Freshwater Organisms* (Third Edition, EPA/600/4-91/002, July 1994, or subsequent editions). The Discharger shall conduct the following tests annually:

- survival and reproduction tests for the cladoceran, *Ceriodaphnia dubia*;
- larval survival and growth tests with the fathead minnow, *Pimephales promelas*; and
- the growth test for the alga, *Selenastrum capricornum*.

The most sensitive species shall be used during the tests. Annually, the Discharger shall test the three species listed above and shall monitor for the most sensitive species.

Five wastewater dilution ratios bracketing the waste concentration in the discharge, in addition to a control, shall be tested. Four replicates (minimum) are required per dilution ratio for the minnow and the alga. The toxicity tests shall be conducted concurrently with the reference toxicant tests. Both the toxicity and reference toxicant tests must meet the test acceptability criteria specified in the reference cited above. If the criteria are unmet, the Discharger must resample and retest within 14 days. The Discharger shall report the test results according to the chapter on report preparation provided in the reference cited above, and shall attach the report to the monthly monitoring report. The Discharger shall submit the test data on electronic disk according to Suggested Standardized Reporting Requirements for Monitoring Chronic Toxicity (SWRCB, August 1993).

Compliance with chronic toxicity shall be expressed as TU_c, which equals 100/NOEC. NOEC (No Observed Effect Concentration) is the highest toxicant concentration, in terms of percent effluent to dilution water ratio, to which test organisms are exposed that causes no observable adverse effect. A sample is considered chronically toxic when the TU_c exceeds 1 or any test exceeds 50 percent effect.

³ Determination of acute toxicity shall be based on the mortality data from the chronic toxicity tests.

Constituent	Units	Sample Type	Sampling Frequency
Bromoform	µg/L	24-hr. Composite	Monthly
Chlorodibromomethane	µg/L	24-hr. Composite	Monthly
Dichlorobromomethane	µg/L	24-hr. Composite	Monthly

EFFLUENT MONITORING FOR PRIORITY TOXIC POLLUTANTS

Representative peak loading samples of effluent shall be collected and analyzed for the following priority pollutants:

VOLATILE COMPOUNDS	Acceptable Analytical Methods*	Respective Minimum Level (ML)**, µg/L	Sampling Frequency ¹
1,1 Dichloroethane	GC, GCMS	0.5, 1	Annually (in Oct.)
1,1 Dichloroethene	GC	0.5	Annually (in Oct.)
1,1,1 Trichloroethane	GC, GCMS	0.5, 2	Annually (in Oct.)
1,1,2 Trichloroethane	GC	0.5	Annually (in Oct.)
1,1,2,2 Tetrachloroethane	GC	0.5	Annually (in Oct.)
1,2 Dichlorobenzene (v)	GC, GCMS	0.5, 2	Annually (in Oct.)
1,2 Dichloroethane	GC	0.5	Annually (in Oct.)
1,2 Dichloropropane	GC	0.5	Annually (in Oct.)
1,3 Dichlorobenzene (v)	GC, GCMS	0.5, 2	Annually (in Oct.)
1,3 Dichloropropene (v)	GC, GCMS	0.5, 2	Annually (in Oct.)
1,4 Dichlorobenzene (v)	GC, GCMS	0.5, 2	Annually (in Oct.)
Acrolein	GC, GCMS	2, 5	Annually (in Oct.)
Acrylonitrile	GC, GCMS	2, 2	Annually (in Oct.)
Benzene	GC	0.5	Annually (in Oct.)
Bromomethane	GC, GCMS	1, 2	Annually (in Oct.)
Carbon Tetrachloride	GC	0.5	Annually (in Oct.)
Chlorobenzene	GC, GCMS	0.5, 2	Annually (in Oct.)
Chloroethane	GC, GCMS	0.5, 2	Annually (in Oct.)
Chloroform	GC, GCMS	0.5, 2	Annually (in Oct.)
Chloromethane	GC, GCMS	0.5, 2	Annually (in Oct.)
Dichloromethane	GC, GCMS	0.5, 2	Annually (in Oct.)
Ethylbenzene	GC, GCMS	0.5, 2	Annually (in Oct.)
Tetrachloroethene	GC	0.5	Annually (in Oct.)
Toluene	GC, GCMS	0.5, 2	Annually (in Oct.)
Trans-1,2 Dichloroethylene	GC	0.5	Annually (in Oct.)
Trichloroethene	GC, GCMS	0.5, 2	Annually (in Oct.)
Vinyl Chloride	GC, GCMS	0.5, 2	Annually (in Oct.)

SEMI-VOLATILE COMPOUNDS	Acceptable Analytical Methods*	Respective Minimum Level (ML)**, µg/L	Sampling Frequency
1,2 Benzantracene	GCMS	5	Annually (in Oct.)
1,2 Dichlorobenzene (sv)	GC, GCMS	2, 2	Annually (in Oct.)
1,2 Diphenylhydrazine	GCMS	1	Annually (in Oct.)
1,2,4 Trichlorobenzene	GC, GCMS	1, 5	Annually (in Oct.)
1,3 Dichlorobenzene (sv)	GC, GCMS	2, 1	Annually (in Oct.)
1,4 Dichlorobenzene (sv)	GC, GCMS	2, 1	Annually (in Oct.)
2 Chlorophenol	GC, GCMS	2, 5	Annually (in Oct.)

SEMI-VOLATILE COMPOUNDS	Acceptable Analytical Methods*	Respective Minimum Level (ML)**, µg/L	Sampling Frequency
2,4 Dichlorophenol	GC, GCMS	1, 5	Annually (in Oct.)
2,4 Dimethylphenol	GC, GCMS	1, 2	Annually (in Oct.)
2,4 Dinitrophenol	GC, GCMS	5, 5	Annually (in Oct.)
2,4 Dinitrotoluene	GCMS	5	Annually (in Oct.)
2,4,6 Trichlorophenol	GC, GCMS	10, 10	Annually (in Oct.)
2,6 Dinitrotoluene	GCMS	5	Annually (in Oct.)
2-Nitrophenol	GCMS	10	Annually (in Oct.)
2-Chloroethyl vinyl ether	GC, GCMS	1, 1	Annually (in Oct.)
2- Chloronaphthalene	GCMS	10	Annually (in Oct.)
3,3' Dichlorobenzidine	GCMS	5	Annually (in Oct.)
3,4 Benzofluoranthene	GCMS, LC	10, 10	Annually (in Oct.)
4 Chloro-3-methylphenol	GC, GCMS	5, 1	Annually (in Oct.)
4,6 Dinitro-2-methylphenol	GCMS	5	Annually (in Oct.)
4-Nitrophenol	GC, GCMS	5, 10	Annually (in Oct.)
4-Bromophenyl phenyl ether	GC, GCMS	10, 5	Annually (in Oct.)
4-Chlorophenyl phenyl ether	GCMS	5	Annually (in Oct.)
Acenaphthene	GC, GCMS, LC	1, 1, 0.5	Annually (in Oct.)
Acenaphylene	GCMS, LC	10, 0.2	Annually (in Oct.)
Anthracene	GCMS, LC	10, 2	Annually (in Oct.)
Benzidine	GCMS	5	Annually (in Oct.)
Benzo(a) pyrene (3,4 Benzopyrene)	LC	2	Annually (in Oct.)
Benzo(g,h,i)perylene	GCMS, LC	5, 0.1	Annually (in Oct.)
Benzo(k)fluoranthene	LC	2	Annually (in Oct.)
bis2-(1-Chloroethoxy) methane	GCMS	5	Annually (in Oct.)
bis(2-chloroethyl) ether	GCMS	1	Annually (in Oct.)
bis(2-chloroisopropyl) ether	GC, GCMS	10, 2	Annually (in Oct.)
Bis(2-Ethylhexyl) phthalate	GCMS	5	Annually (in Oct.)
Butyl benzyl phthalate	GC, GCMS	10, 10	Annually (in Oct.)
Chrysene	LC	5	Annually (in Oct.)
di-n-Butyl phthalate	GCMS	10	Annually (in Oct.)
di-n-Decyl phthalate	GCMS	10	Annually (in Oct.)
Dibenzo(a,h)-anthracene	LC	0.1	Annually (in Oct.)
Diethyl phthalate	GC, GCMS	10, 2	Annually (in Oct.)
Dimethyl phthalate	GC, GCMS	10, 2	Annually (in Oct.)
Fluoranthene	GC, GCMS, LC	10, 1, 0.05	Annually (in Oct.)
Fluorene	GCMS, LC	10, 0.1	Annually (in Oct.)
Hexachloro-cyclopentadiene	GC, GCMS	5, 5	Annually (in Oct.)
Hexachlorobenzene	GCMS	1	Annually (in Oct.)
Hexachlorobutadiene	GCMS	1	Annually (in Oct.)
Hexachloroethane	GCMS	1	Annually (in Oct.)
Indeno(1,2,3,cd)-pyrene	LC	0.05	Annually (in Oct.)
Isophorone	GCMS	1	Annually (in Oct.)
N-Nitroso diphenyl amine	GCMS	1	Annually (in Oct.)
N-Nitroso-dimethyl amine	GCMS	5	Annually (in Oct.)
N-Nitroso -di n-propyl amine	GCMS	5	Annually (in Oct.)
Naphthalene	GC, GCMS, LC	10, 1, 0.2	Annually (in Oct.)
Nitrobenzene	GC, GCMS	10, 1	Annually (in Oct.)
Pentachlorophenol	GC	1	Annually (in Oct.)
Phenanthrene	GCMS, LC	5, 0.05	Annually (in Oct.)

SEMI-VOLATILE COMPOUNDS	Acceptable Analytical Methods*	Respective Minimum Level (ML)**, µg/L	Sampling Frequency
Phenol	GC, GCMS, COLOR	1, 1, 50	Annually (in Oct.)
Pyrene	GCMS, LC	10, 0.05	Annually (in Oct.)

INORGANICS	Acceptable Analytical Methods*	Respective Minimum Level (ML)**, µg/L	Sampling Frequency
Antimony	FAA, GFAA, ICPMS, SPGFAA, HYDRIDE	10, 5, 0.5, 5, 0.5	Annually (in Oct.)
Arsenic	GFAA, ICP, ICPMS, SPGFAA	2, 10, 2, 2, 1	Annually (in Oct.)
Beryllium	FAA, GFAA, ICP, ICPMS, SPGFAA, DCP	20, 0.5, 2, 0.5, 1, 1000	Annually (in Oct.)
Cadmium	GFAA, ICPMS, SPGFAA	0.5, 0.25, 0.5	Annually (in Oct.)
Chromium (total)	FAA, GFAA, ICP, ICPMS, SPGFAA	50, 2, 10, 0.5, 1	Annually (in Oct.)
Chromium VI	FAA, COLOR	5, 10	Annually (in Oct.)
Copper	GFAA, ICPMS, SPGFAA	5, 0.5, 2	Annually (in Oct.)
Lead	ICPMS, SPGFAA	0.5, 2	Annually (in Oct.)
Mercury	CVAA	0.2	Annually (in Oct.)
Nickel	FAA, GFAA, ICP, ICPMS, SPGFAA	50, 5, 20, 1, 5	Annually (in Oct.)
Silver	GFAA, ICPMS, SPGFAA	1, 0.25, 2	Annually (in Oct.)
Thallium	ICPMS	1	Annually (in Oct.)
Zinc	FAA, ICP, ICPMS, SPGFAA	20, 20, 1, 10	Annually (in Oct.)

PESTICIDES – PCBs	Acceptable Analytical Methods*	Respective Minimum Level (ML) µg/L	Sampling Frequency
4,4'-DDD	GC	0.05	Annually (in Oct.)
4,4'-DDE	GC	0.05	Annually (in Oct.)
4,4'-DDT	GC	0.01	Annually (in Oct.)
a-Endosulfan	GC	0.02	Annually (in Oct.)
a-Hexachloro-cyclohexane	GC	0.01	Annually (in Oct.)
Aldrin	GC	0.005	Annually (in Oct.)
b-Endosulfan	GC	0.01	Annually (in Oct.)
b-Hexachloro-cyclohexane	GC	0.005	Annually (in Oct.)
Dieldrin	GC	0.1	Annually (in Oct.)
Endosulfan Sulfate	GC	0.005	Annually (in Oct.)
Endrin	GC	0.01	Annually (in Oct.)
Endrin Aldehyde	GC	0.01	Annually (in Oct.)
Heptachlor	GC	0.01	Annually (in Oct.)
Heptachlor Epoxide	GC	0.01	Annually (in Oct.)
Lindane (g-Hexachloro-cyclohexane)	GC	0.02	Annually (in Oct.)
PCB 1016	GC	0.5	Annually (in Oct.)
PCB 1221	GC	0.5	Annually (in Oct.)
PCB 1232	GC	0.5	Annually (in Oct.)
PCB 1242	GC	0.5	Annually (in Oct.)
PCB 1248	GC	0.5	Annually (in Oct.)
PCB 1254	GC	0.5	Annually (in Oct.)
PCB 1260	GC	0.5	Annually (in Oct.)
Toxaphene	GC	0.5	Annually (in Oct.)

* For each constituent the Discharger may select one of the above analytical methods, which are described in 40 CFR 136.3.

** The ML value represents the lowest quantifiable concentration in a sample based on the proper application of all method-based analytical procedures and the absence of any matrix interference. Discharger shall instruct laboratories to establish calibration standards so that the ML value (or its equivalent) is the lowest calibration standard. At no time is the Discharger to use analytical data derived from extrapolation beyond the lowest point of the calibration curve.

ANALYTICAL METHODOLOGY

GC – Gas Chromatography
 GCMS – Gas Chromatography/Mass Spectrometry
 LC – High Pressure Liquid Chromatography
 FAA – Flame Atomic Absorption
 GFAA – Graphite Furnace Atomic Absorption
 Hydride – Gaseous Hydride Atomic Absorption
 CVAA – Cold Vapor Atomic Absorption
 ICP – Inductively Coupled Plasma
 ICPMS – Inductively Coupled Plasma/Mass Spectrometry
 SPGFAA – Stabilized Platform Graphite Furnace Atomic Absorption
 DCP – Direct Current Plasma
 COLOR – Colorimetric

EFFLUENT MONITORING FOR BASIN PLAN POLLUTANTS

BASIN PLAN POLLUTANT ²	Sampling Frequency
2,4 D	Annually (in Oct.)
2,4,5 TP Silvex	Annually (in Oct.)
M.B.A.S.	Annually (in Oct.)
Atrazine	Annually (in Oct.)
Simazine	Annually (in Oct.)
Xylenes	Annually (in Oct.)
Methoxychlor	Annually (in Oct.)
1,2-Dibromo-3-chloropropane	Annually (in Oct.)
Cis-1,2-Dichlorethylene	Annually (in Oct.)
Trans-1,2-Dichloroethylene	Annually (in Oct.)
Ethylene Dibromide	Annually (in Oct.)
Glyphosate	Annually (in Oct.)
Molinate	Annually (in Oct.)
Thiobencarb	Annually (in Oct.)
Trichlorofluoromethane	Annually (in Oct.)
1,1,2-Trichloro-1,2,2-Trifluoroethane	Annually (in Oct.)
Glyphosate	Annually (in Oct.)
Carbofuran	Annually (in Oct.)
Aluminum	Annually (in Oct.)
Boron	Annually (in Oct.)
Cobalt	Annually (in Oct.)
Fluoride	Annually (in Oct.)
Iron	Annually (in Oct.)
Lithium	Annually (in Oct.)
Manganese	Annually (in Oct.)
Vanadium	Annually (in Oct.)

EFFLUENT MONITORING FOR CCR TITLE 22 POLLUTANTS NOT SPECIFIED IN BASIN PLAN⁴

Title 22 pollutant	Sampling Frequency
Alachlor	Annually (in Oct.)
Bentazon	Annually (in Oct.)
Chlordane	Annually (in Oct.)
Dalapon	Annually (in Oct.)
Dibromochloropropane	Annually (in Oct.)
Di(2-ethylhexyl)adipate	Annually (in Oct.)
Di(2-ethylhexyl)phthalate	Annually (in Oct.)
Dinoseb	Annually (in Oct.)
Diquat	Annually (in Oct.)
Endothall	Annually (in Oct.)
Ethylene dibromide	Annually (in Oct.)
Oxamyl	Annually (in Oct.)
Picloram	Annually (in Oct.)
Methyl-tert-butyl ether	Annually (in Oct.)
1,1-Dichloroethylene	Annually (in Oct.)
Dichloromethane	Annually (in Oct.)
Styrene	Annually (in Oct.)
Thiobencarb	Annually (in Oct.)
Carbofuran	Annually (in Oct.)
Barium	Annually (in Oct.)
Cobalt	Annually (in Oct.)

⁴ Concentrations of the following pollutants shall be determined by the appropriate standard analytical method as described in 40 CFR 136.3. The detection limit shall be the Minimum Level, which is the lowest quantifiable concentration in a sample based on the proper application of all method-based analytical procedures and the absence of any matrix interference. Discharger shall instruct laboratories to establish calibration standards so that the ML value (or its equivalent) is the lowest calibration standard. The Discharger is never to use analytical data derived from extrapolation beyond the lowest point of the calibration curve.

EFFLUENT MONITORING FOR DIOXIN CONGENERS

The Policy for Implementation of Toxics Standards for Inland Surface Waters, Enclosed Bays and Estuaries of California, requires that a minor industrial Discharger monitor its effluent for the presence of 17 dioxin congeners. Representative peak loading samples of effluent shall be collected and analyzed for the following pollutants:

DIOXIN CONGENER	Toxic Equivalency Factor ⁵	Sampling Frequency
2,3,7,8-Tetrachlorodibenzo-p-dioxin	1	Annually (in Oct.)
1,2,3,7,8-PentaCDD	1.0	
1,2,3,4,7,8-HexaCDD	0.1	
1,2,3,6,7,8-HexaCDD	0.1	
1,2,3,7,8,9-HexaCDD	0.1	
1,2,3,4,6,7,8-HeptaCDD	0.01	
OctaCDD	0.0001	
2,3,7,8-Tetrachlorodibenzo-p-furan	0.1	
1,2,3,7,8-PentaCDF	0.05	
2,3,4,7,8-PentaCDF	0.5	
1,2,3,4,7,8-HexaCDF	0.1	
1,2,3,6,7,8-HexaCDF	0.1	
1,2,3,7,8,9-HexaCDF	0.1	
2,3,4,6,7,8-HexaCDF	0.1	
1,2,3,4,6,7,8-HeptaCDF	0.01	
1,2,3,4,7,8,9-HeptaCDF	0.01	
OctaCDF	0.0001	

REPORTING FOR DIOXIN CONGENER MONITORING

The Discharger is required to report for each congener the analytical results of the effluent monitoring, including the quantifiable limit, the minimum detection limit (MDL), and the measured or estimated concentration. In addition, the Discharger is required to multiply each measured or estimated congener by its respective TEF (presented above) and report the sum of these values. This dioxin congener monitoring shall be submitted with the annual monitoring report.

⁵ The Toxic Equivalency Factor (TEF) expresses the relative toxicity's of the congeners compared to 2,3,7,8-TCDD.

RECEIVING WATER MONITORING

Receiving water monitoring stations shall be established as follows:

Station No.	Location
1	At Fox Canyon Road
2	At Mission
3	At Marsh Street Bridge.
4	50 feet upstream of Discharge Point.
5	San Luis Obispo Creek immediately upstream of confluence with Prefumo Canyon Creek.
6	Prefumo Canyon Creek 50 feet upstream from confluence with San Luis Obispo Creek.
7	Approximately 0.5 mile downstream from Discharge Point
8	At Higuera Street Bridge, near U.S. 101

Representative samples of the receiving water shall be collected and analyzed for the following:

Constituent	Units	Sample Type ⁶	Sampling Station	Sampling Frequency
Flow ⁷	cfs	Instantaneous	4, 5, 7, 8	Weekly, April through October
Flow	MGD	Instantaneous	4, 5, 7, 8	Weekly, April through October, concurrent with effluent ammonia
Turbidity ⁷	NTU	Grab	4 and 5 ⁶	Weekly
Color ⁷	Units	Grab	4 and 5 ⁶	Weekly
PH ^{7,8}	pH units	Grab	4 and 5 ⁶	Weekly
Dissolved Oxygen	mg/L	Grab	4,5	Weekly
Temperature ⁸	°C	Grab	4,5	Weekly
Un-Ionized Ammonia ⁸	mg/L	Grab	4,5	Weekly
Dissolved oxygen	mg/L	Grab	4,5	Weekly
Total Dissolved Solids	mg/L	Grab	4,5	Quarterly
Sodium	mg/L	Grab	4,5	Quarterly
Chloride	mg/L	Grab	4,5	Quarterly
pH ⁸	pH Units	Grab	5,7,8	Monthly
Nitrate as N	mg/L	Grab	5,7,8	Monthly
Dissolved Oxygen	mg/L	Grab	5,7,8	Monthly

⁶ Samples shall be obtained only when safe to do so.

⁷ The San Luis Obispo Creek flowrate shall determine the upstream and downstream stations where these constituents shall be monitored, as follows. If the creek flows underground between Station 2 and the discharge point, samples shall be obtained from Station 2. If the creek flows aboveground from Station 2 to the discharge point, samples shall be obtained from Station 4. In either case, Station 5 shall be the downstream location.

⁸ Temperature and pH are to be measured at the same time the Total Ammonia sample is collected. Results shall be used to calculate and report Un-ionized Ammonia concentrations.

Constituent	Units	Sample Type ⁶	Sampling Station	Sampling Frequency
Total Phosphate as P	mg/L	Grab	5,7,8	Monthly
Algal description ⁹	Visual observation	Grab	5,7,8	Monthly
Nitrite as N	mg/L	Grab	5,7,8	Monthly
Ammonia as N	mg/L	Grab	5,7,8	Monthly
TKN ¹⁰ as N	mg/L	Grab	5,7,8	Monthly
Dissolved Orthophosphate as P	mg/L	Grab	5,7,8	Monthly

BIOSOLIDS MONITORING

Samples shall be collected from the last point in the biosolids handling process (i.e. the drying beds just before removal) where representative samples of residual solids from the treatment process can be obtained and analyzed for the following parameters at the specified frequencies:

Constituent	Units	Sample type	Sampling frequency
Quantity	Cubic yds. & kilograms	Measured	During removal
Disposal location	-	-	-
Moisture Content	%	Grab	Quarterly
Total Phosphorus	mg/kg*	Grab	Quarterly
Kjeldahl Nitrogen	mg/kg*	Grab	Quarterly
pH	pH units	Grab	Quarterly
Total Ammonia (as N)	mg/kg*	Composited grabs ¹¹	Annually (Oct)
Nitrate (as N)	mg/kg	Composited grabs	Annually (Oct)
Grease and Oil	mg/kg*	Composited grabs	Annually (Oct)
Boron	mg/kg*	Composited grabs	Annually (Oct)
Cadmium	mg/kg*	Composited grabs	Annually (Oct)
Copper	mg/kg*	Composited grabs	Annually (Oct)
Lead	mg/kg*	Composited grabs	Annually (Oct)
Nickel	mg/kg*	Composited grabs	Annually (Oct)
Chromium (Total)	mg/kg*	Composited grabs	Annually (Oct)
Lead	mg/kg*	Composited grabs	Annually (Oct)
Nickel	mg/kg*	Composited grabs	Annually (Oct)
Mercury	mg/kg*	Composited grabs	Annually (Oct)
Silver	mg/kg*	Composited grabs	Annually (Oct)
Zinc	mg/kg*	Composited grabs	Annually (Oct)
Antimony	µg/kg	Composited grabs	Annually (Oct)
Arsenic	µg/kg	Composited grabs	Annually (Oct)

⁹ Narrative description of algae present at station shall include algal color, location with respect to stream banks and depth of water, appearance (filamentous, matting, attached, etc.), percent coverage of water surface).

¹⁰ Total Kjeldahl Nitrogen

¹¹ For the annual composited grab sample, at least three samples shall be obtained from random locations from the drying beds. The samples shall be thoroughly, but gently, mixed together to form a composite sample which shall be analyzed. The composite sample for grease and oil shall be composed of three randomly obtained samples from the drying beds.

Constituent	Units	Sample type	Sampling frequency
Cadmium	µg/kg	Composited grabs	Annually (Oct)
Beryllium	µg/kg	Composited grabs	Annually (Oct)
Total Chromium	µg/kg	Composited grabs	Annually (Oct)
Copper	µg/kg	Composited grabs	Annually (Oct)
Lead	µg/kg	Composited grabs	Annually (Oct)
Mercury	µg/kg	Composited grabs	Annually (Oct)
Nickel	µg/kg	Composited grabs	Annually (Oct)
Selenium	µg/kg	Composited grabs	Annually (Oct)
Silver	µg/kg	Composited grabs	Annually (Oct)
Thallium	µg/kg	Composited grabs	Annually (Oct)
Cyanide	µg/kg	Composited grabs	Annually (Oct)
Asbestos ¹²	µg/kg	Composited grabs	Annually (Oct)
2,3,7,8 - TCDD (Dioxin)	µg/kg	Composited grabs	Annually (Oct)
Acrolein	µg/kg	Composited grabs	Annually (Oct)
Acrylonitrile	µg/kg	Composited grabs	Annually (Oct)
Benzene	µg/kg	Composited grabs	Annually (Oct)
Bromoform	µg/kg	Composited grabs	Annually (Oct)
Carbon Tetrachloride	µg/kg	Composited grabs	Annually (Oct)
Chlorobenzene	µg/kg	Composited grabs	Annually (Oct)
Chlorodibromomethane	µg/kg	Composited grabs	Annually (Oct)
Chloroethane	µg/kg	Composited grabs	Annually (Oct)
2 - Chloroform	µg/kg	Composited grabs	Annually (Oct)
Chloroethylvinyl ether	µg/kg	Composited grabs	Annually (Oct)
Dichlorobromomethane	µg/kg	Composited grabs	Annually (Oct)
1,1 - Dichloroethane	µg/kg	Composited grabs	Annually (Oct)
1,2 - Dichloroethane	µg/kg	Composited grabs	Annually (Oct)
1,1 - Dichloroethylene	µg/kg	Composited grabs	Annually (Oct)
1,2 - Dichloropropane	µg/kg	Composited grabs	Annually (Oct)
1,3 - Dichloropropylene	µg/kg	Composited grabs	Annually (Oct)
Ethylbenzene	µg/kg	Composited grabs	Annually (Oct)
Methyl Bromide	µg/kg	Composited grabs	Annually (Oct)
Methyl Chloride	µg/kg	Composited grabs	Annually (Oct)
Methylene Chloride	µg/kg	Composited grabs	Annually (Oct)
1,1,2,2 - Tetrachloroethane	µg/kg	Composited grabs	Annually (Oct)
Tetrachloroethylene	µg/kg	Composited grabs	Annually (Oct)
Toluene	µg/kg	Composited grabs	Annually (Oct)
1,2 - Trans-dichloroethylene	µg/kg	Composited grabs	Annually (Oct)
1,1,1 - Trichloroethane	µg/kg	Composited grabs	Annually (Oct)
1,1,2 - Trichloroethane	µg/kg	Composited grabs	Annually (Oct)
Trichloroethylene	µg/kg	Composited grabs	Annually (Oct)
Vinyl Chloride	µg/kg	Composited grabs	Annually (Oct)
2 - Chlorophenol	µg/kg	Composited grabs	Annually (Oct)

¹² The Discharger is not required to sample and analyze for asbestos until EPA promulgates an applicable analytical technique under 40 CFR Part 136.

Constituent	Units	Sample type	Sampling frequency
2,4 - Dichlorophenol	µg/kg	Composited grabs	Annually (Oct)
2,4 - Dimethylphenol	µg/kg	Composited grabs	Annually (Oct)
2 - Methyl - 4,6 - dinitrophenol	µg/kg	Composited grabs	Annually (Oct)
2,4 - Dinitrophenol	µg/kg	Composited grabs	Annually (Oct)
2 - Nitrophenol	µg/kg	Composited grabs	Annually (Oct)
4 - Nitrophenol	µg/kg	Composited grabs	Annually (Oct)
3 - Methyl - 4 - chlorophenol	µg/kg	Composited grabs	Annually (Oct)
Phenol	µg/kg	Composited grabs	Annually (Oct)
Pentachlorophenol	µg/kg	Composited grabs	Annually (Oct)
2,4,6 - Trichlorophenol	µg/kg	Composited grabs	Annually (Oct)
Acenaphthene	µg/kg	Composited grabs	Annually (Oct)
Acenaphthylene	µg/kg	Composited grabs	Annually (Oct)
Anthracene	µg/kg	Composited grabs	Annually (Oct)
Benzidine	µg/kg	Composited grabs	Annually (Oct)
Benzo(a)anthracene	µg/kg	Composited grabs	Annually (Oct)
Benzo(a)pyrene	µg/kg	Composited grabs	Annually (Oct)
Benzo(b)fluoranthene	µg/kg	Composited grabs	Annually (Oct)
Benzo(gh)perylene	µg/kg	Composited grabs	Annually (Oct)
Benzo(k)fluoranthene	µg/kg	Composited grabs	Annually (Oct)
Bis(2 - chloroethoxy)methane	µg/kg	Composited grabs	Annually (Oct)
Bis(2 - chloroethyl)ether	µg/kg	Composited grabs	Annually (Oct)
Bis(2-chloroisopropyl)ether	µg/kg	Composited grabs	Annually (Oct)
Bis(2 - ethylhexyl)phthalate	µg/kg	Composited grabs	Annually (Oct)
4 - Bromophenyl Phenyl Ether	µg/kg	Composited grabs	Annually (Oct)
Butylbenzyl Phthalate	µg/kg	Composited grabs	Annually (Oct)
2 - Chloronaphthalene	µg/kg	Composited grabs	Annually (Oct)
4 - Chlorophenyl Phenyl Ether	µg/kg	Composited grabs	Annually (Oct)
Chrysene	µg/kg	Composited grabs	Annually (Oct)
Dibenzo(a,h)anthracene	µg/kg	Composited grabs	Annually (Oct)
1,2 - Dichlorobenzene	µg/kg	Composited grabs	Annually (Oct)
1,3 - Dichlorobenzene	µg/kg	Composited grabs	Annually (Oct)
1,4 - Dichlorobenzene	µg/kg	Composited grabs	Annually (Oct)
3,3 - Dichlorobenzene	µg/kg	Composited grabs	Annually (Oct)
Diethyl Phthalate	µg/kg	Composited grabs	Annually (Oct)
Dimethyl Phthalate	µg/kg	Composited grabs	Annually (Oct)
Di - n - Butyl Phthalate	µg/kg	Composited grabs	Annually (Oct)
2,4 - Dinitrotoluene	µg/kg	Composited grabs	Annually (Oct)
2,6 - Dinitrotoluene	µg/kg	Composited grabs	Annually (Oct)
Di - n - Octyl Phthalate	µg/kg	Composited grabs	Annually (Oct)
1,2 - Diphenylhydrazine	µg/kg	Composited grabs	Annually (Oct)
Fluoranthene	µg/kg	Composited grabs	Annually (Oct)
Fluorene	µg/kg	Composited grabs	Annually (Oct)

Constituent	Units	Sample type	Sampling frequency
Hexachlorobenzene	µg/kg	Composited grabs	Annually (Oct)
Hexachlorobutadiene	µg/kg	Composited grabs	Annually (Oct)
Hexachlorocyclopentadiene	µg/kg	Composited grabs	Annually (Oct)
Hexachloroethane	µg/kg	Composited grabs	Annually (Oct)
Indeno(1,2,3 -cd)pyrene	µg/kg	Composited grabs	Annually (Oct)
Isophorone	µg/kg	Composited grabs	Annually (Oct)
Naphthalene	µg/kg	Composited grabs	Annually (Oct)
Nitrobenzene	µg/kg	Composited grabs	Annually (Oct)
N - Nitrosodimethylamine	µg/kg	Composited grabs	Annually (Oct)
N - Nitroso - n - propylamine	µg/kg	Composited grabs	Annually (Oct)
N - Nitrosodiphenylamine	µg/kg	Composited grabs	Annually (Oct)
Phenanthrene	µg/kg	Composited grabs	Annually (Oct)
Pyrene	µg/kg	Composited grabs	Annually (Oct)
1,2,4 - Trichlorobenzene	µg/kg	Composited grabs	Annually (Oct)
alpha - BHC	µg/kg	Composited grabs	Annually (Oct)
beta - BHC	µg/kg	Composited grabs	Annually (Oct)
gamma - BHC	µg/kg	Composited grabs	Annually (Oct)
delta - BHC	µg/kg	Composited grabs	Annually (Oct)
Chlordane	µg/kg	Composited grabs	Annually (Oct)
4,4' - DDT	µg/kg	Composited grabs	Annually (Oct)
4,4' - DDE	µg/kg	Composited grabs	Annually (Oct)
4,4' - DDD	µg/kg	Composited grabs	Annually (Oct)
Dieldrin	µg/kg	Composited grabs	Annually (Oct)
alpha - Endosulfan	µg/kg	Composited grabs	Annually (Oct)
beta - Endosulfan	µg/kg	Composited grabs	Annually (Oct)
Endosulfan Sulfate	µg/kg	Composited grabs	Annually (Oct)
Endrin	µg/kg	Composited grabs	Annually (Oct)
Endrin Aldehyde	µg/kg	Composited grabs	Annually (Oct)
Heptachlor	µg/kg	Composited grabs	Annually (Oct)
Heptachlor Epoxide	µg/kg	Composited grabs	Annually (Oct)
PCB - 1242	µg/kg	Composited grabs	Annually (Oct)
PCB - 1254	µg/kg	Composited grabs	Annually (Oct)
PCB - 1221	µg/kg	Composited grabs	Annually (Oct)
PCB - 1232	µg/kg	Composited grabs	Annually (Oct)
PCB - 1248	µg/kg	Composited grabs	Annually (Oct)
PCB - 1260	µg/kg	Composited grabs	Annually (Oct)
PCB - 1016	µg/kg	Composited grabs	Annually (Oct)
Toxaphene	µg/kg	Composited grabs	Annually (Oct)

* Total sample (including all solids and any liquid portion) to be analyzed and results reported as mg/kg or µg/kg, as appropriate, based on the dry weight of the sample.

PRETREATMENT MONITORING AND REPORTING

By January 30th of each year, the Discharger shall submit an annual report to the State Board, Regional Board and EPA describing the Discharger's pretreatment activities over the previous 12 months. In the event that the Discharger is not in compliance with any condition or requirement of this Order and permit, including any noncompliance with pretreatment audit or compliance inspection requirements, then the Discharger shall also include the reasons for noncompliance and state how and when the Discharger shall comply with such conditions and requirements. This report shall contain, but not be limited to, the following information:

1. A summary of analytical results from representative, flow-proportioned, 24-hour composite sampling of the plant's effluent and sludge as provided in the relevant sections of this Monitoring and Reporting Program. The Discharger shall also provide any influent, effluent or sludge monitoring data for nonpriority pollutants which the Discharger believes may be causing or contributing to interference, pass-through or adversely impacting sludge quality. Sampling and analysis shall be performed in accordance with the techniques prescribed in 40 CFR Part 136 and amendments thereto.
2. A discussion of upset, interference, or pass-through incidents, if any, at the POTW which the Discharger knows or suspects were caused by industrial users of the POTW system. The discussion shall include the reasons why incidents occurred, corrective actions taken and, if known, name and address of the industrial user(s), responsible. Discussions shall also include a review of applicable pollutant limitations to determine whether any additional limitations or changes to existing requirements may be necessary to prevent pass-through, interference, or noncompliance with sludge disposal requirements.
3. The cumulative number of industrial users that the Discharger has notified regarding Baseline Monitoring Reports and the cumulative number of industrial user responses.
4. An updated list of the Discharger's industrial users, including their names and addresses, or a list of deletions and additions keyed to a previously submitted list. The Discharger shall provide a brief explanation for each deletion. The list shall identify the industrial users subject to Federal Categorical Standards by specifying which set(s) of standards are applicable. The list shall indicate which categorical industries, or specific pollutants from each industry, are subject to local limitations that are more stringent than the Federal Categorical Standards. The Discharger shall also list the noncategorical industrial users that are subject only to local discharge limitations. The Discharger shall characterize the compliance status of each industrial user by employing the following descriptions:
 - (a) In compliance with Baseline Monitoring Report requirements (where applicable);
 - (b) Consistently achieving compliance;
 - (c) Inconsistently achieving compliance;
 - (d) Significantly violated applicable pretreatment requirements as defined by 40 CFR 403.8(f)(2)(vii);
 - (e) On a schedule to achieve compliance (include the date final compliance is required);
 - (f) Not achieving compliance and not on a compliance schedule; or
 - (g) The Discharger does not know the industrial user's compliance status.

A report describing the compliance status of any industrial user characterized by descriptions in Items 4 (c) through (g) above shall be submitted quarterly from the annual report date to the State Board, Regional Board and EPA. The report shall identify the specific compliance status of each such industrial user. This quarterly

reporting requirement shall commence upon issuance of this Order and Permit. Quarterly reports shall be submitted April 30, July 31, and October 31. The fourth quarter report shall be incorporated in the annual report. Quarterly reports shall briefly describe POTW compliance with audit/pretreatment compliance inspection requirements. If none of the aforementioned conditions exist, at a minimum, a letter indicating that all industries are in compliance and no violations or changes to the pretreatment program have occurred during the quarter must be submitted.

5. A summary of inspection and sampling activities conducted by the Discharger during the past year to gather information and data regarding industrial users. The summary shall include:
 - (a) Names and addresses of the industrial users subject to surveillance by the discharger and an explanation of whether they were inspected, sampled, or both and the frequency of these activities at each user; and
 - (b) Conclusions or results from the inspection or sampling of each industrial user.
6. A summary of compliance and enforcement activities during the past year. The summary shall include names and addresses of the industrial users affected by the following actions:
 - (a) Warning letters or notices of violation regarding the industrial users' apparent noncompliance with Federal Categorical Standards or local discharge limitations. For each industrial user, identify whether the apparent violation concerned the Federal Categorical Standards or local discharge limitations;
 - (b) Administrative Orders regarding the industrial users' noncompliance with Federal Categorical Standards or local discharge limitations. For each industrial user, identify whether the violation concerned the Federal Categorical Standards or local discharge limitations;
 - (c) Civil actions regarding the industrial users' noncompliance with Federal Categorical Standards or local discharge limitations. For each industrial user, identify whether the violation concerned the Federal Categorical Standards or local discharge limitations;
 - (d) Criminal actions regarding the industrial user's noncompliance with Federal Categorical Standards or local discharge limitations. For each industrial user, identify whether the violation concerned Federal Categorical Standards or local discharge limitations;
 - (e) Assessment of monetary penalties. For each industrial user, identify the amount of the penalties;
 - (f) Restriction of flow to the POTW; or
 - (g) Disconnection from discharge to the POTW.
7. Description of any significant changes in operating the pretreatment program which differ from the information in the Discharger's Approved POTW Pretreatment Program including, but not limited to changes concerning: the program's administrative structure; local industrial discharge limitations; monitoring program or monitoring frequencies; legal authority or enforcement policy; funding mechanisms; resource requirements; or staffing levels.
8. A summary of the annual pretreatment budget, including the costs of pretreatment program functions and equipment purchases.
9. A summary of public participation activities to involve and inform the public.

10. A description of any changes in sludge disposal methods and a discussion of any concerns not described elsewhere in the report.

Reports shall be signed by a principal executive officer, ranking elected official, or other duly authorized employee if such employee is responsible for overall operation of the POTW. Signed copies of these reports shall be submitted to the Regional Administrator and the State at the following addresses:

CA Regional Water Quality Control Board
81 Higuera Street, Suite 200
San Luis Obispo, CA 93401-5427

State Water Resources Control Board
Div. of Water Quality-Pretreatment Unit
901 P Street
Sacramento, CA 95812-0100

Pretreatment & Compliance Section
U.S. Environmental Protection Agency
Region 9, Attn: W-5-2
75 Hawthorne Street
San Francisco, CA 94105

REPORTING

All reports required in this monitoring and reporting program are required pursuant to Water Code §13267. Monthly monitoring reports shall be submitted by the 40th day following the last day of the sampling month. The annual report shall be submitted by the 45th day following the last day of the sampling month.

ORDERED BY: _____

[Signature]
3-29-05

Date

